

26STCP0100 26STCP0100

County: los-angeles

Division: Civil Law and Motion

Department: 25

Hearing date: 2026-09-23

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Case Number: 26STCP0100 Hearing Date: September 23, 2026 Dept: 25

HEARING DATE: Wed., September 23, 2026 JUDGE /DEPT: Eisenman/25

CASE NAME: Rubalcaba v. Navarro PET. FILED: 01-07-26

CASE NUMBER: 26STCP00100

NOTICE: OK

PROCEEDINGS: VERIFIED PETITION FOR RELEASE OF PROPERTY FROM MECHANICS LIEN

MOVING PARTY: Petitioner Jose R. Rubalcaba, Jr.

RESP. PARTY: None

PETITION TO RELEASE MECHANICS LIEN

(Civ. Code § 8460, et seq.)

TENTATIVE RULING:

The Court GRANTS Jose R. Rubalcaba, Jr.'s petition to release the mechanics lien.

Rubalcaba is to give notice.

SERVICE:

[X] Proof of Service Timely Filed (CRC, rule 3.1300) OK

[X] Correct Address (CCP §§ 1013, 1013a) OK

[X] At least 15 Days Lapsed (Civ. Code § 8486(b)) OK

[X] Correct Manner of Service (Civ. Code § 8486(b)) OK

OPPOSITION: None filed as of September 21, 2026 [] Late [X] None

REPLY: None filed as of September 21, 2026 [] Late [X] None

ANALYSIS:

Jose R. Rubalcaba, Jr. petitions the Court to release property located at 540 San Gabriel Boulevard, Rosemead, California 91770 from a mechanics lien recorded in March 2021 by Adrian Navarro.

After a mechanics lien has been recorded, “[t]he owner of property or the owner of any interest in property subject to a claim of lien may petition the court for an order to release the property from the claim of lien if the claimant has not commenced an action to enforce the lien within the time provided in Section 8460.” (Civ. Code, § 8480, subd. (a).) A claimant must commence an action to enforce a lien within 90 days of recording it, otherwise the claim of the lien expires and is unenforceable. (Civ. Code, § 8460, subd. (a).)

The Court previously continued this hearing to allow Rubalcaba to file proof of service of this petition, and Rubalcaba has since filed proof of substitute service. Rubalcaba has now properly complied with the service requirements, petition allegation requirements, and demand requirements in filing this petition. (Civ. Code, §§ 8108, 8482, 8484, 8486.) Navarro did not file an opposition indicating otherwise.

Accordingly, the Court GRANTS Rubalcaba’s petition to release the mechanics lien. Rubalcaba is to give notice, and to file a proposed order within 10 days of this ruling.